IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA FIRST DISTRICT

RAYBURN SCOTT,

Appellant,

v. **Case No. 1D2025-3158**
L.T. No.2025-101900/25-093

BURLINGTON STORES, INC.,

Appellee.
_____/

Appellee's Motion to Dismiss Appellant's Appeal

Appellee, Burlington Stores, Inc. ("Burlington"), by and through undersigned counsel, pursuant to Fla. R. App. P. 9.300, hereby respectfully moves this Court to dismiss Appellant Rayburn Scott's ("Appellant") appeal for failure to timely file his notice of appeal with this Court as required by the Florida Rules of Appellate Procedure. Alternatively, Burlington seeks dismissal of this appeal as a sanction for Appellant's filing of a frivolous and procedurally deficient Initial Brief. In support of this Motion, Burlington states as follows:

I. Factual Background

1. This matter arises from Appellant's Complaint of Discrimination, FCHR No. 2025101900/EEOC No. 15D-2024-

01390, filed with the Florida Commission on Human Relations ("FCHR") in August 2024 ("Complaint").

2. In the Complaint, Appellant alleged that Burlington retaliated against him "due to negation of wages" and discriminated against him based on his African-American race when it failed to hire Appellant for a part-time retail stocking associate position at a store in Tampa, Florida. (Exhibit A, Complaint of Discrimination). Appellant alleged that Burlington violated the Florida Civil Rights Act of 1992 ("FCRA").

3. The FCHR investigated the allegations in Appellant's Complaint, and, on February 11, 2025, issued a determination of "no reasonable cause" to believe that discrimination or retaliation of any kind had occurred. (Exhibit B, No Reasonable Cause Determination).

4. On or about February 17, 2025, Appellant filed a Petition for Relief ("Petition") with the FCHR, which transmitted the Petition to the Florida Division of Administrative Hearings ("DOAH") for an administrative hearing. (Exhibit C, Transmittal of Petition).

5. On April 30, 2025, DOAH Administrative Law Judge ("ALJ") Andrew D. Manko held a final administrative hearing

pursuant Chapter 120, Florida Statutes, and Florida Administrative Code Chapter 28-106, Parts I and II.

6. At the final hearing, Burlington presented credible evidence that its virtual recruiting assistant did not know Appellant's race at any time during Burlington's entirely remote initial screening process. Burlington also presented credible evidence that it did not select Appellant for the part-time retail stocking associate role strictly because Appellant responded "No" to a question whether the non-negotiable starting hourly rate of $12.00 offered for the position was "acceptable." (*See* Exhibit D, ALJ's Recommended Order).

7. ALJ Manko issued a Recommended Order on June 24, 2025, finding that the weight of the credible evidence demonstrated that Burlington never knew Appellant's race during the initial screening phrase; and that Appellee's decision not to select Appellant for the applied-for position was based solely on Appellant's rejection of the $12.00 per hour—non-negotiable—pay rate. (*See* Ex. D, ¶ 11). Based on the findings of fact, the ALJ concluded that Appellant failed to prove a *prima facie* case of FCRA discrimination or retaliation as a matter of law.

8. The DOAH advised Appellant of his right to file written exceptions to the recommended order within fifteen (15) days of the recommended order. (Ex. D, p. 14). Appellant did not submit any exceptions.

9. On September 11, 2025, the FCHR issued its Final Order, adopting the ALJ's findings of fact and conclusions of law in their entirety. (*See* Exhibit E, FCHR Final Order).

10. Notably, the Final Order contained "Notice of Appeal Rights" advising Appellant of his appeal rights as follows:

> The parties have the right to seek judicial review of this Final Order pursuant to Section 120.68, Florida Statutes, and Florida Rule of Appellate Procedure 9.110. Such proceedings are commenced by emailing clerk@fchr.myflorida.com, **and a second copy** with the filing fee prescribed by law, **with the District Court of Appeal, First District, or with the District Court of Appeal in the Florida Appellate District where the party resides. The Notice of Appeal must be filed within 30 days of the date this Order is filed with the Clerk of the Commission**.

(Ex. E, p. 2 (emphases added)). Accordingly, to effectively appeal the FCHR's Final Order, Appellant was required **both** to (1) email the FCHR Clerk **and** (2) file his notice of appeal with the appropriate appellate court, **within thirty (30) days** of September 11, 2025—or by October 13, 2025 (technically, thirty-two (32) days due to the

thirtieth and thirty-first days falling on a Saturday and Sunday, respectively).

11. On October 9, 2025, Appellant emailed the FCHR Clerk his purported "Notice of Appeal" and accompanying documents. (*See* Exhibit F, October 9, 2025 Email).

12. However, Appellant did not complete Step 2. He did not, by the thirtieth (or the thirty-second) day, file a Notice of Appeal, or the requisite copy, either with the First District Court of Appeal or the District Court of Appeal in the Florida Appellate District where Appellant resided—i.e., the Second District.

13. On December 2, 2025—notwithstanding Appellant's failure to timely complete Step 2 of the judicial review initiation process—the FCHR Clerk transmitted a "Notice of Appeal Transmittal Form" to this Court.

14. Only after that did Appellant file what he called "Amended[1] Notice[s] of Appeal" on December 4, 9, and 11, 2025[2]—all well beyond the thirty-day deadline mandated by the Florida Rules

[1] Appellee is not aware of Appellant filing any "original" Notice of Appeal with any District Court of Appeal.

[2] All three (3) Notices of Appeal were duplicate.

of Appellate Procedure and the FCHR's Final Order. (*See* Exhibit G, Appellant's Untimely Notices of Appeal).

15. This appeal went forward notwithstanding the deficient judicial review initiation process.

16. Pursuant to Fla. R. App. P. 9.110(f), Appellant's Initial Brief was due on February 10, 2026.[3]

17. After Appellant failed to timely file his Initial Brief, on February 16, 2026, this Court entered an Order directing Appellant either to file, within twenty (20) days, his Initial Brief, or show cause why this appeal should not be dismissed. (*See* Order dated February 16, 2026).

18. On March 3, 2026, Appellant filed his Initial Brief, riddled with frivolous allegations, unsubstantiated and uncited facts, various exhibits which have no bearing on his claims, and conclusory legal arguments. In short, the Initial Brief entirely failed to comply with Fla. R. App. P. 9.210(b) setting forth the specific requirements of an Initial Brief.

[3] Citations to the Initial Brief are "(IB at __)."

19. For the reasons set forth above and below, Appellee respectfully requests that this Court dismiss Appellant's appeal because he failed to comply with the Florida Rules of Appellate Procedure by (1) failing to timely file his Notice of Appeal with this Court, and (2) filing a frivolous and procedurally deficient Initial Brief to which Burlington cannot meaningfully respond.

II. MEMORANDUM OF LAW.

A. Dismissal of Appellant's appeal is warranted for failure to comply with Florida Rules of Appellate Procedure.

Because Appellant did not timely file a Notice of Appeal with the Clerk of this Court as required under Fla. R. App. P. 9.110(c) and the FCHR Final Order, this appeal must be dismissed. It is well-settled that Florida appellate courts must dismiss an appeal if it was not initiated within the applicable time limit. *See, e.g.*, *Roadrunner Const., Inc. v. Dep't of Fin. Servs., Div. of Workers' Comp.*, 33 So. 3d 78, 79 (Fla. 1st DCA 2010) (dismissing appeal of final order of administrative agency for failure to timely file notice of appeal).

For judicial review of administrative agency action to proceed, "[a]ll proceedings shall be instituted by filing a notice of appeal or petition for review in accordance with the Florida Rules of Appellate

Procedure within 30 days after the rendition of the order being appealed." Fla. Stat. § 120.68(2)(a). Pursuant to section 120.68, Fla. R. App. P. 9.190 provides that an appeal from final agency action "shall be commenced in accordance with rule 9.110(c)." Fla. R. App. P. 9.190(b)(1).

The Florida Supreme Court established the time limit for initiating an appeal from a final administrative order when it adopted Fla. R. App. P. 9.110(c). *See Roadrunner Const.*, 33 So. 3d at 79. The plain language of Fla. R. App. P. 9.110(c) provides: "[T]he appellant **must file** the notice with the clerk of the lower administrative tribunal within 30 days of rendition of the order to be reviewed, and **must also file a copy of the notice, accompanied by any filing fees prescribed by law, with the clerk of the court**." Fla. R. App. P. 9.110(c) (emphasis added); *see Pearce v. State, Dep't of Rev.*, 6 So. 3d 614, 614 (Fla. 2d DCA 2009) (dismissing appeal as untimely under Fla. R. App. P. 9.110(c)). Accordingly, Fla. R. App. P. 9.110(c) sets forth a two-step mandatory procedure for initiating judicial review of final agency action: (1) an appellant must file a notice with the Clerk

of the applicable agency (here, the FCHR), and (2) an appellant **must also file a copy of the notice** with the Clerk of this Court.[4]

Appellant's appeal must be dismissed because he failed to timely, within the thirty-day mandatory statutory period, file a copy of the notice of appeal with this Court as required. As an initial matter, the FCHR Final Order clearly instructed Appellant on the steps he must take to properly seek judicial review—it specifically stated that "proceedings are commenced by emailing clerk@fchr.myflorida.com, and a second copy with the filing fee prescribed by law, with the District Court of Appeal, First District." (Ex. E, p. 2). Appellant therefore received proper instructions on how to properly commence his appeal, and failed to follow them. *See Butterfield v. Dep't of Env. Reg.*, 470 So. 2d 95, 97 (Fla. 5th DCA 1985) (dismissing appeal for lack of jurisdiction because appellant "should have followed the instructions in the final order").

Despite such instructions, Appellant failed to complete both required steps. It is undisputed that Appellant did not file a Notice of Appeal with this Court until December 4, 2025 at the earliest—fifty-

[4] Fla. R. App. P. 9.020(c) defines "court" as including the district courts of appeal, therefore Fla. R. App. P. 9.110(c)'s reference to "clerk of the court" is to the clerk of this First District Court of Appeal for purposes of this appeal.

two (52) days **after** his thirty-day deadline ran out. (*See* Ex. G).[5] This Court therefore should dismiss Appellant's appeal because of Appellant's failure to properly and timely complete both steps necessary to initiate this appeal.

B. Dismissal is further warranted as a sanction for Appellant's frivolous and procedurally deficient Initial Brief.

Although there is no dispute that Appellant failed to follow the Florida Rules of Appellate Procedure, additionally, Burlington respectfully asks this Court to exercise its discretion to sanction Appellant's frivolous Initial Brief and dismiss his appeal outright. *See* Fla. R. App. 9.410(a) (providing that Court may impose sanctions for the filing of any brief that is frivolous or in bad faith).

i. Appellant's Initial Brief Is Procedurally Deficient.

As an initial matter, Appellant's Initial Brief fails to comply with the Florida Rules of Appellate Procedure. Fla. R. App. P. 9.210 sets forth the specific requirements for Appellant's Initial Brief, almost all of which Appellant failed to comply with. Specifically, Appellant's Initial Brief failed to include the following sections:

[5] In an abundance of caution, Burlington reviewed the dockets for all six District Courts of Appeal and did not locate any *timely* Notice of Appeal filed by Appellant.

> (1) a table of citations with cases listed alphabetically, statutes and other authorities, and the pages of the brief on which each citation appears;
> (2) a statement of the case and of the facts, which must include the nature of the case, the course of the proceedings, and the disposition in the lower tribunal, with references to the appropriate pages of the record or transcript;
> (3) a summary of argument, suitably paragraphed, condensing succinctly, accurately, and clearly the argument actually made in the body of the brief, which should not be a mere repetition of the headings under which the argument is arranged;
> (4) argument with regard to each issue, with citation to appropriate authorities, and including the applicable appellate standard of review;

First, Appellant's Initial Brief is entirely devoid of a table of citations. Instead, Appellant provides a "Statutes and Acts" section, which contains various references to the statutes including the National Labor Relations Act (entirely unrelated to his claims under the FCRA) and conclusory arguments about what these various statutes mean. (*See* IB at pp. 5-6). There is no meaningful way to assess the authorities on which Appellant relies or otherwise determine how these various "statutes and acts" relate to his argument.

Second, Appellant's Initial Brief fails to contain a coherent statement of the case and facts describing the proceedings before the

lower administrative tribunal and the basis for his appeal. Notably, Appellant fails to include references to the appropriate pages of the record or transcript. This Court is not required to scour the record in search for evidence that may be helpful to Appellant or substantiate his arguments. *See Greenfield v. Westmoreland,* 156 So. 3d 1, 1 (Fla. 3d DCA 2007) ("In fact-intensive appeals, frequent citations to the record are required"; "[i]t is not a court's role to scour the record for facts or arguments that a party could have raised . . . on appeal."); *Mech v. Brazilian Waxing By Sisters, Inc.,* 349 So. 3d 453, 454, n.1 (Fla. 4th DCA 2022) ("It is not the responsibility of the Court to dig through the record to locate the basis for a party's argument." (citation omitted)).

Third, Appellant fails to include a summary of the argument, or fourth, any argument with regard to each issue. It is entirely unclear what issues Appellant asserts as the basis for his appeal, much less what arguments he makes in support of each unidentified issue. Instead, a cursory reading of Appellant's Initial Brief reveals that it is entirely without merit—it contains nonsensical, rambling allegations, and does not set forth a meaningful basis for this Court to review the FCHR's Final Order. Appellant further fails to comply with Fla. R.

App. P. 9.045(b) governing line spacing, type size, and typeface, despite his certificate of compliance affirming to this Court that his brief "complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b)." (IB at p. 36).

ii. Appellant Waived His Appellate Rights.

Appellant's Initial Brief is frivolous because Appellant also failed to timely file written exceptions to ALJ Manko's June 24, 2025 Recommended Order. Although his Initial Brief is difficult to decipher, it appears that Appellant is challenging the Final Order, which adopted the findings of fact and conclusions of law from the Recommended Order. Appellant's failure to timely file written exception means he waived his right to challenge DOAH's findings of fact or the FCHR's Final Order accepting those findings of fact. *See Couch v. Comm'n on Ethics,* 617 So. 2d 1119, 1124 (Fla. 5th DCA 1993); *see also, Colonnade Med. Ctr., Inc. v. State, Agency for Health Care Administration,* 847 So. 2d 540, 542 (Fla. 4th DCA 2003) (where appellant failed to timely file exceptions to recommended order, it failed to challenge factual findings, and cannot do so for first time on appeal); *L.P. v. Dep't of HRS,* 655 So. 2d 1182, 1183 (Fla. 1st DCA 1995) (per curiam) ("Appellant has waived his right to challenge this

finding [of fact] . . . as he failed to file an exception to the recommended order's finding of fact and thus failed to preserve the issue for appellate review."); *Envtl. Coalition of Fla., Inc. v. Broward Cnty.,* 586 So. 2d 1212, 1213 (Fla. 1st DCA 1991) ("Having filed no exceptions to the findings of fact contained in the recommended order, Environmental Coalition has thereby expressed its agreement with, or at least waived any objection to, those findings of fact."). Appellant's failure to file written exceptions to the Recommended Order but nonetheless attempting to challenge the DOAH's factual findings in his Initial Brief renders his Initial Brief frivolous. Accordingly, Burlington respectfully asks that this Court dismiss Appellant's appeal outright for filing a frivolous and procedurally deficient Initial Brief. *See, e.g.*, *Gutierrez v. Gutierrez*, 399 So. 3d 1185, 1187 (Fla. 3d DCA 2024) (on order to show cause, dismissing *pro se* appellant's appeal in part for violation of Florida Rule of Appellate Procedure 9.210(b) in multiple, material ways).

WHEREFORE, Appellee Burlington Stores, Inc. respectfully requests that this Court enter an order dismissing the appeal due to Appellant's failure to timely file a notice of appeal with this Court under Fla. R. App. P. 9.110(c) and Appellant's filing of a frivolous and

procedurally deficient Initial Brief, and granting such other and further relief as this Court deems just and proper.

Respectfully submitted this 8th day of April, 2026.

Respectfully submitted,

/s/ Sara K. Finnigan
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Sara K. Finnigan, Esq.
Florida Bar No. 1032142
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Counsel for Appellee Burlington Stores, Inc.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on April 8, 2026, a true and correct copy of the foregoing was filed on the Florida Courts E-Filing Portal and a copy has been provided via e-mail according to the below:

RAYBURN R. SCOTT, *pro se* Appellant
4701 Dragon Tail Ct.,
Valrico, FL 33594
RayburnScott@outlook.com

/s/ Sara K. Finnigan
Attorney

EXHIBIT A

Ron DeSantis
Governor

State of Florida
Florida Commission on Human Relations
An Equal Opportunity Employer • Affirmative Action Employer
4075 Esplanade Way • Room 110 • Tallahassee, Florida 32399-7020
(850) 488-7082 / FAX: (850) 487-1007
http://fchr.state.fl.us
United in One Goal: Equal Opportunity and Mutual Respect

Angela Primiano
Chair
Cheyanne Costilla
Executive Director

NOTICE OF FILING OF COMPLAINT OF DISCRIMINATION

August 20, 2024

Burlington Stores, In.c
C/o Human Resources, Human Resources
Burlington Stores
1830 Route 130 N
Burlington, NJ 08016

Certified Receipt #: 9171969009350290656618

Re: Scott v. Burlington Stores Inc
FCHR No. 2025101900
EEOC No. 15D-2024-01390

This is notice that the enclosed complaint of employment discrimination has been filed with the Florida Commission on Human Relations (Commission or FCHR) against the named company or organization. This complaint was filed under one or more of the following laws: (a) the Florida Civil Rights Act of 1992, as amended (Chapter 760, Florida Statutes); (b) Title VII of the Civil Rights Act of 1964, as amended; (c) the Age Discrimination in Employment Act (ADEA); and/or (d) the Americans with Disabilities Act (ADA).

The above laws prohibit retaliation against any person for making a complaint, testifying, assisting, or participating in an investigation, proceeding, or hearing conducted under these laws. Persons filing complaints of discrimination are advised of these requirements and are instructed to notify the FCHR if any attempt at retaliation is made.

Although you do not have to be represented by an attorney while this complaint is being investigated, you have a right and may wish to retain an attorney to represent you. If you do retain an attorney, please provide the FCHR with the attorney's contact information.

In the event you receive this letter and are not the authorized representative for this company or organization, please contact the Commission immediately at (850) 488-7082.

COMMISSIONERS

Angela Primiano *(Chair)*
Hollywood

Darrick D. McGhee Sr.
Tallahassee

Larry Hart *(Vice Chair)*
Fort Myers

Matthew Klein
Orlando

Jay Pichard
Tallahassee

Brian Battaglia
Tampa

Kenyetta Mullins Moyé
Tallahassee

Pamela Payne
Jacksonville

Dawn Hanson
Tallahassee

Vivian Myrtetus
Miami

REQUEST FOR RESPONSE AND SUPPORTING DOCUMENTARY EVIDENCE

The FCHR requests a response within 25 days of the date of the Notice of Filing of Complaint of Discrimination. The attached forms and information are provided to assist in preparing a response. Please review these documents carefully and respond accordingly. The response should set forth all facts which pertain to the allegations in the complaint of discrimination under investigation, as well as any other facts which may be relevant for the FCHR's consideration. The response should clearly explain the respondent's version of the facts and identify the specific documents and witnesses supporting its position.

Pursuant to Section 760.11(1), *Florida Statutes,* an answer filed with the FCHR shall be verified, and pursuant to Rule 60Y-3.001(27), F.A.C., "verified" means under oath or affirmation or by the signing of the written declaration prescribed by Section 92.525(2), *Florida Statutes*. The verification requirement means that the document must be signed or executed by a person who must state under oath or affirm the following: "Under penalties of perjury, I declare that I have read the foregoing [document] and that the facts stated in it are true," followed by the signature of the person making the declaration.

The FCHR also requests the submission of copies of all responsive documentary evidence. The FCHR may request information concerning the facts and circumstances of the complaint, and requests may be made by oral interviews, written interrogatories, requests for production of documents, requests for entry upon land for inspection and other purposes, or requests for a written statement or affidavit. In the event a respondent fails to provide information within that person's control, which has been requested by the FCHR, and reasonable notice an opportunity to cure have been given, an inference may be drawn, in making a determination of reasonable cause, that such information is adverse to the respondent's interest.

If no response to this request is received, the FCHR may issue a subpoena for the information, and in the event the person to whom the subpoena is directed fails to obey the subpoena, the Executive Director may direct the agency's legal counsel to apply to a circuit court for an order of compliance.

The FCHR may release the response and non-confidential attachments to the complainant and any representative to allow them an opportunity to respond. This enables the FCHR to assess the credibility of the information provided by both parties. It is in the respondent's interests to provide an effective response that focuses on the facts. The FCHR will not release the complainant's response, if any, to the respondent.

An effective response is clear, concise, complete, and responsive. A response that simply denies the allegations without providing the position or supporting information is not sufficient. An effective response should include the following information:

- Provide a description of the organization; include the organization's legal name and address, the name, address, title, telephone number, and email address of the person responsible for responding to the complaint, the primary nature of the business, and the number of employees.
- **If claiming to have less than 15 employees, please submit: (1) copies of payroll records (for current and preceding years); (2) a sworn statement or affidavit that the respondent does not have interrelated operations with other entities; and (3) copies of the current and preceding year's IRS Form 940 or 941 (Quarters 1 – 4) and Employee Quarterly Report RT-**

6 (Quarters 1-4). NOTE: "Current year" means the calendar year during which the most recent alleged harm occurred.

- Address each alleged discriminatory act and your position regarding it and provide copies of documents supporting your position and/or version of the events.
- Provide any applicable practices, policies, or procedures applicable to the allegations in the complaint.
- Identify any individuals, other than the complainant, who have been similarly affected by these practices, policies, or procedures; describe the circumstances in which the practices, policies, or procedures have been applied.
- Explain why individuals who were in a similar situation to the complainant were not similarly affected.
- Identify official(s) who made decisions or took action relating to the matter(s) raised in the complaint.
- Be specific about dates, actions, and locations applicable to this complaint.
- Provide internal investigative documentation of alleged incidents or grievance hearing reports.

Segregate Confidential Information – The response should only refer to but not identify information that is sensitive medical information or confidential financial information. If relying upon confidential information, the confidential information should be provided in separate attachments clearly labeled as confidential. The respondent should segregate the following information into separate attachments or redact as needed:

- Sensitive medical information
- Social security numbers
- Non-relevant personally identifiable information of witnesses, comparators, or third parties, for example, social security numbers, dates of birth in non-age cases, home addresses and personal phone numbers, etc.

Mediation - FCHR mediation is a process in which a neutral mediator helps the parties resolve their dispute by suggesting different ways of settling the matter. The mediator will not make any judgment or determination and will not provide legal advice. Mediation will not be used as a fact-finding or discovery proceeding.

Mediation will be conducted within 45 days from the date the case was assigned to FCHR's mediation unit. Participation in mediation is voluntary; any participant may withdraw from or suspend the mediation process at any time for any reason. The participants are to act in good faith in the mediation and work toward a satisfactory resolution. "Good faith" means an affirmative duty to listen to the concerns and suggestions of the other participants and to communicate honestly and with integrity. Good faith also means that participants come to the mediation with sufficient authority to negotiate an agreement and they are prepared to provide a settlement request/offer.

The complainant must be able to present sufficient information concerning the alleged discrimination and should be prepared to present what relief/resolution is being requested with an itemized statement of losses. The respondent must furnish information that supports its position, and if represented, the respondent's representative must have the authority to settle and provide a settlement offer.

Please remember that mediation is designed to explore resolution and will not be used as evidentiary exchange. The parties should be prepared to explore settlement options and be open to compromise.

Benefits of Mediation

- Confidential – The process is private, off the record, and informal.
- Impartial – The mediator is a neutral party whose goal is to facilitate mutual resolution.
- Free – Mediation is provided at no cost to either party unless the mediator is requested to travel.
- Everyone wins – Mediation is the best way to preserve or build a better working or parting relationship.
- Mediation lets you create your own solution; it improves communication and cooperation.
- Mediation is fair and neutral; it saves time and money.
- Mediation helps to uncover the real issues in the workplace.
- If resolution is reached, it's done in a "no fault" manner.
- Mediation avoids litigation.

Requesting Mediation - If you wish to participate in mediation, please complete, sign, date, and return the Agreement to Mediate and Confidentiality Agreement within 25 days of the date of the notice. Requests for an extension of time to submit this form will not be granted. Please note, mediation will not occur unless both parties agree to participate. If mediation results in an impasse, the response to the complaint will be due within 10 days of the mediation conference.

Provide Response by the Due Date - If you do not wish to participate in mediation, please provide the requested response to the complaint and supporting documentation along with a signed and dated copy of the Affidavit to Authenticate Documents within 25 days of the date of the notice.

AGREEMENT TO MEDIATE AND CONFIDENTIALITY AGREEMENT

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EEOC No.: 15D-2024-01390

This is an agreement by the parties to participate in mediation in the above referenced charge. The parties understand that mediation is a voluntary process that may be terminated at any time. The Commission invites the parties and, if they desire, their representatives and/or attorneys to attend a mediation conference. No one else may attend without the permission of the parties and the consent of the mediator(s).

Mediation can be conducted in person or via telephone or Teams video conference. In-person mediations are held at a location specified by the parties if the mediator's travel expenses are reimbursed by the parties. If the parties agree to pay for the mediator's travel expenses, the Commission will send an invoice directly to the parties after mediation, and payment should then be submitted directly to the Commission. The mediator will not accept travel reimbursement payments.

The mediator(s) will not function as the representative of either party. However, the mediator(s) may assist the parties in understanding their rights and the terms of any proposed settlement agreement. Each party acknowledges that he or she has been advised by the Commission to seek independent legal review prior to signing any settlement agreement.

The parties acknowledge that the mediator(s) possesses the discretion to terminate the mediation at any time if an impasse occurs or if either party or the mediator deems the case inappropriate for mediation. The parties recognize that mediation is a confidential process and agree to abide by terms of this agreement.

Mediation sessions will not be tape-recorded or transcribed by the FCHR, the mediator or any of the participants at the mediation conference. All information or materials provided to or created by the mediator, including all notes, records or documents generated during the mediation process, will be destroyed by the mediator after conclusion of the mediation conference. The parties or their representatives are not prohibited from retaining their own notes. However, the FCHR will not maintain any such notes or records as part of its record-keeping procedures.

If a settlement is reached by all the parties, the agreement shall be reduced to writing and, when signed by both parties, shall be binding upon all parties to the agreement. If the complaint(s) is not resolved through mediation, it is understood by the parties that the complaint(s) will be transferred to the FCHR's investigative unit for further processing.

The parties agree:

1. To participate voluntarily in mediation to resolve the complaint(s) filed with the FCHR;

2. That all matters discussed during the mediation conference are confidential, unless otherwise discoverable, and cannot be used as evidence in any subsequent administrative or judicial proceeding. Confidentiality, however, will not extend to threats of imminent physical harm or incidents of actual violence that occur during the mediation process; and

3. Not to subpoena the mediator(s) or compel the mediator(s) to produce any documents provided by a party in any pending or future administrative or judicial proceeding. The mediator(s) will not voluntarily testify on behalf of a party in any pending or future administrative or judicial proceeding. The parties further agree that the mediator(s) will be held harmless for any claim arising from the mediation process.

_____ _____

Signature of Respondent Date

_____ _____

Signature of Respondent's Representative Date

AFFIDAVIT TO AUTHENTICATE DOCUMENTS

State of _____

County of _____

I,

_____,

Name of records custodian

_____,

Title

after being duly sworn, hereby attest that the attached documents are true and correct copies of the originals maintained by:

_____,

Name of Respondent or Entity Maintaining Documents

_____.

Name of Sections(s) or Division(s) Maintaining Records, if applicable

_____ _____

Signature of Custodian Date

Sworn to and Subscribed before me this

_____ day of _____, 20_____

_____

(Notary Public)

My Commission Expires:_____

15D-2024-01390

FLORIDA COMMISSION ON HUMAN RELATIONS
4075 Esplanade Way, Room 110, Tallahassee, Florida 32399

EMPLOYMENT COMPLAINT OF DISCRIMINATION

Date Stamp (FCHR Use Only)
FCHR Date: 08/16/2024 Time: 8:00 AM

A. PERSONAL INFORMATION	**FCHR No. 2025101900**	
Name Rayburn Scott	**E-Mail Address** Rayburnscott@outlook.com	**Date of Birth** October 12, 1987
Mailing Address 4701 Dragon Tail Ct	**Home Telephone Number (area code)** +1 (813) 323-6158	
City, State, and Zip Code Tampa, FL 33594	**Work (if possible to call you there)**	

B. BUSINESS INFORMATION (employer, labor organization, employment or government agency, etc.)		
Name Burlington Stores Inc	**Number of Employees** 15+	**Telephone Number** +1 (855) 973-8445
Street Address (Branch/Office in Florida) 1830 Route 130 N	**City, State and Zip Code** Burlington, NJ 08016	**County** Burlington

C.CAUSE OF DISCRIMINATION BASED ON – Check appropriate box(es)	**DATE MOST RECENT DISCRIMINATION TOOK PLACE**
☒ RACE ☐ COLOR ☐ SEX ☐ RELIGION ☐ DISABILITY/HANDICAP ☐ NATIONAL ORIGIN ☐ AGE ☐ MARITAL STATUS X ☐ RETALIATION	**(month, day, year)** July 31, 2024

D. DISCRIMINATION STATEMENT:

I believe I have been discriminated against pursuant to Chapter 760 of the Florida Civil Rights Act, and/or Title VII of the Federal Civil Rights Act, and/or the Age Discrimination in Employment Act, and/or the Americans with Disabilities Act as applicable for the following reason(s):

The Complainant alleged he was discriminated against based on his Race (African American) and subjected to Retaliation due to negation of wages. The Respondent told the CP that he did not meet the minimum requirements for the Part-Time retail stocking position. The complainant believes that this is an unjustifiable decision.

I REQUEST TO BE AFFORDED FULL RELIEF TO WHICH I AM ENTITLED TO UNDER THE LAW(S).

E. VERIFICATION. Under penalties of perjury, I declare that I have read the foregoing complaint of discrimination and that the facts stated in it are true. I will advise the agency if I change my address or telephone number and I will cooperate fully with them in the processing of my complaint in accordance with their procedures.

SIGNATURE OF COMPLAINANT **DATE**

8/15/2024

EXHIBIT B

Ron DeSantis
Governor

State of Florida
Florida Commission on Human Relations

4075 Esplanade Way • Room 110 • Tallahassee, Florida 32399-7020
(850) 488-7082 / FAX: (850) 487-1007
http://fchr.state.fl.us
United in One Goal: Equal Opportunity and Mutual Respect

Angela Primiano
Chair
Cheyanne Costilla
Executive Director

FCHR No. 2025101900
EEOC No. 15D-2024-01390
CERTIFIED MAIL No.: 9171 9690 0935 0292 1457 52

Rayburn Scott
4701 Dragon Tail Ct.
Valrico, FL 33594

COMPLAINANT

Burlington Stores Inc.
c/o Christie Cawley-Duff, Legal Specialist II
Burlington Coat Factory Warehouse Corporation
1830 Route 130 N.
Burlington, NJ 08016

RESPONDENT

DETERMINATION: NO REASONABLE CAUSE

Complainant filed a complaint of discrimination with the Florida Commission on Human Relations (Commission) alleging that Respondent committed unlawful retaliation and discrimination on the basis of race in violation of the Florida Civil Rights Act of 1992. As required in Rule 60Y-5.004(1), Florida Administrative Code (F.A.C.), the Commission's Office of Employment Investigations completed an investigation of this matter, which is reported in the Investigative Memorandum. The Commission's Office of General Counsel reviewed all available evidence and the Investigative Memorandum, and made a recommendation to me, as Executive Director of the Commission, that it is unlikely that unlawful discrimination occurred in this matter.

Pursuant to the authority delegated to me in Rule 60Y-5.004(3), F.A.C., I accept the Office of General Counsel's recommendation and issue this Determination: No Reasonable Cause. Based upon this determination, the Clerk shall serve both the Determination and the attached Notice of Determination upon the parties.

Cheyanne Costilla, Executive Director

Dated: Feb. 11, 2025.

COMMISSIONERS

Angela Primiano *(Chair)* *Hollywood*
Larry Hart *(Vice Chair)* *Fort Myers*
Brian Battaglia *Tampa*
Dawn Hanson *Tallahassee*
Darrick D. McGhee Sr. *Tallahassee*
Matthew Klein *Orlando*
Kenyetta Mullins Moyé *Tallahassee*
Jay Pichard *Tallahassee*
Pamela Payne *Jacksonville*

Ron DeSantis
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Executive Director

FCHR No. 2025101900
EEOC No. 15D-2024-01390

Rayburn Scott
4701 Dragon Tail Ct.
Valrico, FL 33594

COMPLAINANT

Burlington Stores Inc.
c/o Christie Cawley-Duff, Legal Specialist II
Burlington Coat Factory Warehouse Corporation
1830 Route 130 N.
Burlington, NJ 08016

RESPONDENT

NOTICE OF DETERMINATION: NO REASONABLE CAUSE

The Florida Commission on Human Relations has determined that there is no reasonable cause to believe that an unlawful practice occurred. A copy of the determination is attached. Complainant may request an administrative hearing with the Division of Administrative Hearings by filing a Petition for Relief within 35 days of the date the determination was signed by the Executive Director. A blank Petition for Relief form is enclosed with Complainant's notice. It may be beneficial for Complainant to seek assistance from legal counsel prior to filing the petition. This determination of no reasonable cause will become final if Complainant does not file a Petition for Relief within 35 days, and the Commission will dismiss the complaint. In addition, Complainant has a right to request that the EEOC review this determination. To secure a review, Complainant must request it in writing either within 50 days of the date the determination was signed by the Executive Director, or if a Petition for Relief is filed, within 15 days of the final resolution of the administrative process. Requests should be directed to: The Equal Employment Opportunity Commission, State and Local Department, Miami Tower, 100 SE 2nd Street, Suite 1500, Miami, Florida 33131.

The parties named in the determination may inspect the records and documents, in the custody of the Commission, which pertain to the determination. Please contact the Commission's Customer Service Office if you wish to request copies.

COMMISSIONERS

Angela Primiano *(Chair)* *Hollywood*	**Larry Hart** *(Vice Chair)* *Fort Myers*	**Brian Battaglia** *Tampa*	**Dawn Hanson** *Tallahassee*
Darrick D. McGhee Sr. *Tallahassee*	**Matthew Klein** *Orlando*	**Kenyetta Mullins Moyé** *Tallahassee*	**Jay Pichard** *Tallahassee*
		Pamela Payne *Jacksonville*	

I HEREBY CERTIFY that a copy of the foregoing Notice of Determination was mailed to the above-named addressees this 11th day of February, 2025, by U.S. and Electronic Mail.

By: Amber Flowers
Clerk of the Commission Assistant

EXHIBIT C

STATE OF FLORIDA
FLORIDA COMMISSION ON HUMAN RELATIONS

RAYBURN SCOTT,

Petitioner(s),

FCHR No.: 2025-101900

and

BURLINGTON STORES, INC.,

Respondent(s).
_____/

TRANSMITTAL OF PETITION

TO: Darren Schwartz, Interim Director and Chief Judge
Division of Administrative Hearings
1230 Apalachee Parkway
Tallahassee, Florida 32301-1550
(850) 488-9675

Type of case (please select one):
☒ Employment Discrimination
☐ Housing Discrimination
☐ Public Accommodation
☐ Whistleblower

Please be advised that the Florida Commission on Human Relations (FCHR) has received a request for an administrative hearing from **RAYBURN SCOTT.** The FCHR respectfully requests the Division of Administrative Hearings assign this matter to an Administrative Law Judge for proceedings required under the law and to submit a Recommended Order to this agency pursuant to Section 120.57, Florida Statutes and Rule 60Y-4.016(1), Florida Administrative Code. Copies of all relevant pleadings and papers heretofore filed in this proceeding are attached to this notice.

Upon completion of the Recommended Order, please transmit the Recommended Order and the record in this proceeding to:

_/s/ *Amber Flowers*_____
Amber Flowers
Florida Commission on Human Relations

APPEARANCES/PARTIES

PETITIONER(S) AND/OR ATTY(S)

Rayburn Scott
4701 Dragon Tail Court
Valrico, FL 33594
(813)-323-6158
Rayburnscott@outlook.com

RESPONDENT(S) AND/OR ATTY(S)

Christie Cawley-Duff, Legal Specialist II
Burlington Coat Factory Warehouse Corporation
1830 Route 130 N.
Burlington, NJ 08016
(609)-387-7800
Christie.Cawley-Duff@burlington.com

Attachments:
Petition for Relief
Determination
Notice of Determination
Charge of Discrimination

CERTIFICATE OF TRANSMITTAL

Copy of Transmittal Notice and Attachments furnished to:

Rayburn Scott
Rayburnscott@outlook.com

Christie Cawley-Duff, Legal Specialist II
Christie.Cawley-Duff@burlington.com

DONE on February 18th, 2025, in Tallahassee, Florida.

/s/ *Amber Flowers*
Amber Flowers
Florida Commission on Human Relations
4075 Esplanade Way, Suite 110
Tallahassee, FL 32399
Clerk@fchr.myflorida.com

INSTRUCTIONS FOR FILING A PETITION FOR RELIEF
IMPORTANT

Please Print or Type the Petition Form

This Petition for Relief initiates a formal, trial-like proceeding during which you will have to establish, through the introduction of evidence and the testimony of witnesses, that a violation has occurred.

You are not required to be represented by an attorney; however, the Commission encourages you to retain an attorney if you desire. If you are not represented by an attorney and want to file a Petition for Relief from a discriminatory employment practice, a discriminatory housing practice, or a discriminatory public accommodation practice, you may do so by completing and promptly filing the Petition for Relief form as follows:

PETITIONER: This is you. Type your name on the line above "Petitioner" at the top of the form and complete the information in Section 1.

RESPONDENT: This is the person or organization you are filing against. Type the name of the respondent on the line above "Respondent" at the top of the form and complete the information in Section 2 as known to you or as shown on the Commission's Determination. If the respondent has an attorney or representative, complete the information in Section 3.

FCHR NO.: Enter the FCHR case number that was assigned to your complaint and which appears on the Determination.

SECTION 4: Indicate on what date and in what form you received the Commission's Determination.

SECTION 5: Describe specifically the claims which you intend to prove at the administrative hearing establishing that a discriminatory practice occurred. Please attach additional pages, if needed.

SECTION 6: Provide a statement describing how the specific statute requires reversal or modification of the Commission's Determination, including an explanation of how the alleged facts relate to the specific statute. State the critical facts of the case which you disagree with.

SECTION 7: State precisely the remedy you are seeking.

SIGNATURE: You must sign and date the Petition for Relief for it to be accepted for filing with the Commission. The Clerk of the Commission receives and maintains all legal documents filed with the FCHR. The petition for relief may be mailed, sent by facsimile to (850) 487-1007, or scanned and emailed to Clerk@fchr.myflorida.com. A party who elects to file a document by electronic transmission shall be responsible for any delay, disruption, or interruption of the electronic signals and must accept full risk that the document may not be properly filed with the Commission as a result. The filing date for an electronically transmitted document shall be the date the Commission receives the complete document. The Commission office is open from 8:00 a.m. to 5:00 p.m. (Eastern Time), Monday through Friday. Any document received by the Clerk or other agent of the Commission after 5:00 p.m. (Eastern Time) shall be filed as of 8:00 a.m. on the next regular business day. The location of the principal office of the Commission is: 4075 Esplanade Way, Room 110, Tallahassee, Florida 32399.

For discriminatory employment and public accommodation complaints, the Petition for Relief must be received by the Commission no later than **35 days** after the date of the Determination.

For discriminatory housing complaints, the Petition for Relief must be received by the Commission no later than **30 days** after you receive the Determination.

The specific requirements for filing, service, form, and content of petitions are set forth in Rules 60Y-4, 60Y-5.008, 60Y-8.001, and 28-106, F.A.C.

STATE OF FLORIDA
FLORIDA COMMISSION ON HUMAN RELATIONS
PETITION FOR RELIEF

Rayburn Scott_____, Petitioner,

v. **FCHR No._____**

Burlington Stores Inc._____, Respondent(s).

Petitioner files this Petition for Relief from a (check the applicable one):

X **Discriminatory Employment Practice**

☐ **Discriminatory Housing Practice**

☐ **Discriminatory Public Accommodation Practice**

1. **PETITIONER'S CONTACT INFORMATION:**

Name: Ravburn Scott_____

Address: 4701 Dragon Tail Ct_____

City: Valrico_____ State: FL_____ Zip Code: 33594_____

Telephone Number: {813)323-6158_____ Fax Number: (_____)_____

E-mail address: Ravburnscott@outlook.com_____

2. **RESPONDENT'S CONTACT INFORMATION:**

Name: Burlington Stores Inc._____

Address: 1830 Route 130 N. Burlington_____

City: Burlington_____ State: NJ_____ Zip Code: 08016_____

Telephone Number: (_____) _____ Fax Number: (_____) _____

E-mail address: _____

3. **RESPONDENT'S REPRESENTATIVE (if any and if known):**

Name: Burlington Stores Inc. c/o Christie Cawley-Duff, Legal Specialist II Burlington Coat Factory Warehouse Corporation

Address: 1830 Route 130 N. Burlington

City: Burlington State: NJ Zip Code: 08016

Telephone Number: (_____) _____ Fax Number: (_____) _____

E-mail address: _____

4. **WHEN AND HOW DID PETITIONER RECEIVE NOTICE OF THE COMMISSION'S DETERMINATION:**

Feb 11, 2025 Email & USPS

5. **THE FOLLOWING IS A CONCISE STATEMENT OF THE ULTIMATE FACTS ALLEGED, INCLUDING THE SPECIFIC FACTS PETITIONER CONTENDS WARRANT REVERSAL OR MODIFICATION OF THE COMMISSION'S DETERMINATION:**

The Petitioner contends warrant reversal and modification of the Commission's determination based on the relevance of:

- **The complainant believes the survey of the company's system of functions is based upon a discriminatory factor of algorithms for exclusion of employment, in terms of determining race, gender, skill level, and disabilities.**
- **The Petitioner was qualified for the position.**
- **The Respondents are legally responsible for their software.**
- **Based on State Statute 447.403(17) Good Faith Bargaining is legally acceptable in the State of Florida a(n) applicant should not be disqualified.**
- **The Petitioner brings forth Prima Facial evidence based upon wage, racial, and retaliation for wanting to negotiate acceptable wages.**

EEOC Title VII if the procedure discriminates on a basis prohibited by Title VII, even if the test was developed by an outside vendor. In addition, employers may be held responsible for their actions.
Therefore, employers that are deciding whether to rely on a software vendor to develop or administer an algorithmic decision-making tool may want to ask the vendor, at a minimum, whether steps have been taken to evaluate whether the use of the tool causes a substantially lower selection rate for individuals with a characteristic protected by Title VII. If the vendor states that the tool should be expected to result in a substantially lower selection rate for individuals of a particular race, color, religion, sex, or national origin, then the employer should consider whether use of the tool is job-related and consistent with business necessity and whether there are alternatives that may meet the employer's needs and have less of a disparate impact. (See Question 7 for more information.)

Further, if the vendor is incorrect about its own assessment and the tool does result in either disparate impact discrimination or disparate treatment discrimination, the employer could still be liable.

6. RESPONDENT HAS VIOLATED THE FOLLOWING FLORIDA STATUTE (Check One):

X Florida Civil Rights Act of 1992, as Amended, or

□ Florida Fair Housing Act, as Amended

THE FOLLOWING IS AN EXPLANATION OF HOW THE ALLEGED FACTS RELATE TO THE SPECIFIC FLORIDA STATUTE:

Florida Statute 447.403 (17)

Good faith bargaining" shall mean, but not be limited to, the willingness of both parties to meet at reasonable times and places, as mutually agreed upon, in order to discuss issues which are proper subjects of bargaining, with the intent of reaching a common accord. It shall include an obligation for both parties to participate actively in the negotiations with an open mind and a sincere desire, as well as make a sincere effort, to resolve differences and come to an agreement.

Under EEOC Title VII if the procedure discriminates on a basis prohibited by Title VII, even if the test was developed by an outside vendor. In addition, employers may be held responsible for the actions of their agents, which may include entities such as software vendors, if the employer has given them authority to act on the employer's behalf.[11] This may include situations where an employer relies on the results of a selection procedure that an agent administers on its behalf.

Therefore, employers that are deciding whether to rely on a software vendor to develop or administer an algorithmic decision-making tool may want to ask the vendor, at a minimum, whether steps have been taken to evaluate whether the use of the tool causes a substantially lower selection rate for individuals with a characteristic protected by Title VII. If the vendor states that the tool should be expected to result in a substantially lower selection rate for individuals of a particular race, color, religion, sex, or national origin, then the employer should consider whether use of the tool is job-related and consistent with business necessity and whether there are alternatives that may meet the employer's needs and have less of a disparate impact. (See Question 7 for more information.) Further, if the vendor is incorrect about its own assessment and the tool does result in either disparate impact discrimination or disparate treatment discrimination, the employer could still be liable.

7. PETITIONER SEEKS THE FOLLOWING RELIEF:

After reviewing and proving Prima Facie on retaliation, wage, and racial discrimination the tort committed by the Respondent, compensation should be awarded to the Petitioner.

- **Petitioner seeks relief for the liability of tort negligence in the full amount of the value of the corporation's property known as Burlington Stores Inc.**
- **The Petitioner seeks maximum relief for Punitive damages**
- **The Petitioner Seeks maximum relief for Compensatory damages**
- **The Petitioner seeks maximum relief for mental anguish.**

***Note that ____ (provide #) additional pages have been attached.**

WHEREFORE, Petitioner respectfully requests that the Florida Commission on Human Relations enter an Order prohibiting the discriminatory practice and granting affirmative relief, damages, attorneys' fees, and other relief as may be just and equitable in this cause.

Rayburn R. Scott 2/1

_____ _____

Petitioner's Signature **Date**

From: Snipes, Casey on behalf of Clerk
Sent: Monday, February 17, 2025 7:48 AM
To: Flowers, Amber
Subject: FW: FCHR 2025101900 - Rayburn Scott v. Burlington Stores Inc
Attachments: FCHR No. 2025101900 Petition Rayburn Scott Vs Burlington Stores.docx

Follow Up Flag: Follow up
Flag Status: Flagged

Assigned (Actionstep): 101900

Please prepare for DOAH

Casey C. Snipes
Executive Assistant
Florida Commission on Human Relations
4075 Esplanade Way, Room 110
Tallahassee, FL 32399
Phone: 850-907-6785
Fax: 850-487-1007

United in One Goal: Equal Opportunity and Mutual Respect

Correspondence made or received in connection with the transaction of official business by a state agency, unless exempt or
made confidential by law, is considered a public record and may be subject to disclosure upon request.

From: Rayburn Scott <Rayburnscott@outlook.com>
Sent: Monday, February 17, 2025 3:41 AM
To: Flowers, Amber <Amber.Flowers@fchr.myflorida.com>; Clerk <clerk@fchr.myflorida.com>; Identity@FBI.GOV; public.affairs@fbi.gov
Subject: Re: FCHR 2025101900 - Rayburn Scott v. Burlington Stores Inc

Please verify receipt of the attached document. Petition of Relief FCHR No. 2025101900
Rayburn Scott v Burlington Stores Inc.

Sincerely,
Rayburn Scott
Sent from Outlook

From: Flowers, Amber <Amber.Flowers@fchr.myflorida.com>
Sent: Tuesday, February 11, 2025 12:16 PM
To: Rayburn Scott <Rayburnscott@outlook.com>
Subject: RE: FCHR 2025101900 - Rayburn Scott v. Burlington Stores Inc

Good Afternoon,

Please see Legal Analysis Memorandum.

Thank you.

Warmest regards,

Amber Flowers
Staff Assistant
Florida Commission on Human Relations
4075 Esplanade Way, Room 110
Tallahassee, FL 32399
Phone: 850-907-6814
Fax: 850-487-1007

United in One Goal: Equal Opportunity and Mutual Respect

Correspondence made or received in connection
with the transaction of official business by a state
agency, unless exempt or made confidential by law,
is considered a public record and may be subject to
disclosure upon request.

From: Rayburn Scott <Rayburnscott@outlook.com>
Sent: Tuesday, February 11, 2025 12:07 PM
To: Flowers, Amber <Amber.Flowers@fchr.myflorida.com>
Subject: Re: FCHR 2025101900 - Rayburn Scott v. Burlington Stores Inc

LEGAL ANALYSIS MEMORANDUM REQUEST

From: Flowers, Amber <Amber.Flowers@fchr.myflorida.com>
Sent: Tuesday, February 11, 2025 11:44 AM
To: Rayburnscott@outlook.com <Rayburnscott@outlook.com>
Cc: Christie.Cawley-Duff@burlington.com <Christie.Cawley-Duff@burlington.com>
Subject: FCHR 2025101900 - Rayburn Scott v. Burlington Stores Inc

Good Day,

Please see the attached Notice of Determination and Petition for Relief.

If you have any question, please do not hesitate to contact me.

Warmest regards,

Amber Flowers
Staff Assistant
Florida Commission on Human Relations
4075 Esplanade Way, Room 110
Tallahassee, FL 32399
Phone: 850-907-6814
Fax: 850-487-1007

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Ron DeSantis
Governor

State of Florida
Florida Commission on Human Relations

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Angela Primiano
Chair
Cheyanne Costilla
Executive Director

FCHR No. 2025101900
EEOC No. 15D-2024-01390
CERTIFIED MAIL No.: 9171 9690 0935 0292 1457 52

Rayburn Scott
4701 Dragon Tail Ct.
Valrico, FL 33594

COMPLAINANT

Burlington Stores Inc.
c/o Christie Cawley-Duff, Legal Specialist II
Burlington Coat Factory Warehouse Corporation
1830 Route 130 N.
Burlington, NJ 08016

RESPONDENT

DETERMINATION: NO REASONABLE CAUSE

Complainant filed a complaint of discrimination with the Florida Commission on Human Relations (Commission) alleging that Respondent committed unlawful retaliation and discrimination on the basis of race in violation of the Florida Civil Rights Act of 1992. As required in Rule 60Y-5.004(1), Florida Administrative Code (F.A.C.), the Commission's Office of Employment Investigations completed an investigation of this matter, which is reported in the Investigative Memorandum. The Commission's Office of General Counsel reviewed all available evidence and the Investigative Memorandum, and made a recommendation to me, as Executive Director of the Commission, that it is unlikely that unlawful discrimination occurred in this matter.

Pursuant to the authority delegated to me in Rule 60Y-5.004(3), F.A.C., I accept the Office of General Counsel's recommendation and issue this Determination: No Reasonable Cause. Based upon this determination, the Clerk shall serve both the Determination and the attached Notice of Determination upon the parties.

Cheyanne Costilla, Executive Director

Dated: Feb. 11, 2025.

COMMISSIONERS

Angela Primiano *(Chair)* *Hollywood*
Larry Hart *(Vice Chair)* *Fort Myers*
Brian Battaglia *Tampa*
Dawn Hanson *Tallahassee*
Darrick D. McGhee Sr. *Tallahassee*
Matthew Klein *Orlando*
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Ron DeSantis
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Angela Primiano
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Cheyanne Costilla
Executive Director

FCHR No. 2025101900
EEOC No. 15D-2024-01390

Rayburn Scott
4701 Dragon Tail Ct.
Valrico, FL 33594

COMPLAINANT

Burlington Stores Inc.
c/o Christie Cawley-Duff, Legal Specialist II
Burlington Coat Factory Warehouse Corporation
1830 Route 130 N.
Burlington, NJ 08016

RESPONDENT

NOTICE OF DETERMINATION: NO REASONABLE CAUSE

The Florida Commission on Human Relations has determined that there is no reasonable cause to believe that an unlawful practice occurred. A copy of the determination is attached. Complainant may request an administrative hearing with the Division of Administrative Hearings by filing a Petition for Relief within 35 days of the date the determination was signed by the Executive Director. A blank Petition for Relief form is enclosed with Complainant's notice. It may be beneficial for Complainant to seek assistance from legal counsel prior to filing the petition. This determination of no reasonable cause will become final if Complainant does not file a Petition for Relief within 35 days, and the Commission will dismiss the complaint. In addition, Complainant has a right to request that the EEOC review this determination. To secure a review, Complainant must request it in writing either within 50 days of the date the determination was signed by the Executive Director, or if a Petition for Relief is filed, within 15 days of the final resolution of the administrative process. Requests should be directed to: The Equal Employment Opportunity Commission, State and Local Department, Miami Tower, 100 SE 2nd Street, Suite 1500, Miami, Florida 33131.

The parties named in the determination may inspect the records and documents, in the custody of the Commission, which pertain to the determination. Please contact the Commission's Customer Service Office if you wish to request copies.

COMMISSIONERS

Angela Primiano *(Chair)* *Hollywood*	**Larry Hart** *(Vice Chair)* *Fort Myers*	**Brian Battaglia** *Tampa*	**Dawn Hanson** *Tallahassee*
Darrick D. McGhee Sr. *Tallahassee*	**Matthew Klein** *Orlando*	**Kenyetta Mullins Moyé** *Tallahassee*	**Jay Pichard** *Tallahassee*
		Pamela Payne *Jacksonville*	

I HEREBY CERTIFY that a copy of the foregoing Notice of Determination was mailed to the above-named addressees this 11th day of February, 2025, by U.S. and Electronic Mail.

By: Amber Flowers
Clerk of the Commission Assistant

15D-2024-01390

FLORIDA COMMISSION ON HUMAN RELATIONS

4075 Esplanade Way, Room 110, Tallahassee, Florida 32399

EMPLOYMENT COMPLAINT OF DISCRIMINATION

Date Stamp (FCHR Use Only)
FCHR Date: 08/16/2024 Time: 8:00 AM

A. PERSONAL INFORMATION	**FCHR No. 2025101900**	
Name Rayburn Scott	**E-Mail Address** Rayburnscott@outlook.com	**Date of Birth** October 12, 1987
Mailing Address 4701 Dragon Tail Ct	**Home Telephone Number (area code)** +1 (813) 323-6158	
City, State, and Zip Code Tampa, FL 33594	**Work (if possible to call you there)**	

B. BUSINESS INFORMATION (employer, labor organization, employment or government agency, etc.)		
Name Burlington Stores Inc	**Number of Employees** **15+**	**Telephone Number** +1 (855) 973-8445
Street Address (Branch/Office in Florida) 1830 Route 130 N	**City, State and Zip Code** Burlington, NJ 08016	**County** Burlington

C.CAUSE OF DISCRIMINATION BASED ON – Check appropriate box(es)	**DATE MOST RECENT DISCRIMINATION TOOK PLACE**
☒ RACE ☐ COLOR ☐ SEX ☐ RELIGION ☐ DISABILITY/HANDICAP ☐ NATIONAL ORIGIN ☐ AGE ☐ MARITAL STATUS X ☐ RETALIATION	**(month, day, year)** July 31, 2024

D. DISCRIMINATION STATEMENT:

I believe I have been discriminated against pursuant to Chapter 760 of the Florida Civil Rights Act, and/or Title VII of the Federal Civil Rights Act, and/or the Age Discrimination in Employment Act, and/or the Americans with Disabilities Act as applicable for the following reason(s):

The Complainant alleged he was discriminated against based on his Race (African American) and subjected to Retaliation due to negation of wages. The Respondent told the CP that he did not meet the minimum requirements for the Part-Time retail stocking position. The complainant believes that this is an unjustifiable decision.

I REQUEST TO BE AFFORDED FULL RELIEF TO WHICH I AM ENTITLED TO UNDER THE LAW(S).

E. VERIFICATION. Under penalties of perjury, I declare that I have read the foregoing complaint of discrimination and that the facts stated in it are true. I will advise the agency if I change my address or telephone number and I will cooperate fully with them in the processing of my complaint in accordance with their procedures.

SIGNATURE OF COMPLAINANT	**DATE**
Rayburn Scott	8/15/2024

EXHIBIT D

STATE OF FLORIDA
DIVISION OF ADMINISTRATIVE HEARINGS

RAYBURN SCOTT,

Petitioner,

vs. Case No. 25-0930

BURLINGTON STORES, INC.,

Respondent.
_____/

RECOMMENDED ORDER

Administrative Law Judge ("ALJ") Andrew D. Manko of the Division of Administrative Hearings ("DOAH") presided over the final hearing in this matter under sections 120.569 and 120.57(1), Florida Statutes (2024), on April 30, 2025, via Zoom Conference.

APPEARANCES

For Petitioner: Rayburn Scott, pro se
4701 Dragon Tail Court
Valrico, Florida 33594

For Respondents: Sara K. Finnigan, Esquire
Luis A. Santos, Esquire
Ford Harrison LLP
300 South Orange Avenue, Suite 1300
Orlando, Florida 32801

STATEMENT OF THE ISSUES

Whether Respondent engaged in employment discrimination by failing to hire Petitioner and/or retaliating against him on the basis of his race in violation of section 760.10, Florida Statutes, as alleged in the Petition for Relief; and, if so, what affirmative relief should be recommended therefor.

PRELIMINARY STATEMENT

Petitioner filed a Complaint with the Florida Commission on Human Relations ("FCHR") on August 16, 2024, alleging that Respondent engaged in unlawful race-based employment discrimination and retaliation. On February 11, 2025, after investigating the claims, FCHR issued a determination that no reasonable cause existed to believe that unlawful discrimination or retaliation occurred.

On or around February 17, 2025, Petitioner timely requested a hearing by filing a Petition for Relief ("Petition"). The Petition alleged that Respondent refused to hire Petitioner for a position for which he was qualified on the basis of his race (African American) and retaliated against him by refusing to negotiate wages with him in good faith.[1] On February 18, 2025, FCHR transmitted the Petition to DOAH to conduct a formal administrative hearing under section 120.57.

On March 10, 2025, Petitioner filed a Motion for Reasonable Accommodations seeking a legal advocate to assist with a "thorough reading of documents in verbatim for legal clarity of process and procedure" and "with documenting files and assistance with interpretation of legal terminology." On March 14, 2025, Petition filed medical records in support of his request. As explained in an Order dated March 18, 2025, the undersigned denied Petitioner's motion because DOAH's Americans with Disabilities Act ("ADA") coordinator was responsible for handling such requests. The ADA coordinator addressed Petitioner's request and communicated the disposition directly to

[1] In his Petition, but not in his Complaint, Petitioner added claims that Respondent discriminated against him on the basis of gender and disability. However, having failed to raise such allegations in his Complaint, which was solely based on race and retaliation, the allegations concerning gender- and disability-based discrimination are not cognizable in this proceeding. *E.g.*, *Taylor v. Pelican Bay Cmtys., LLC*, FCHR Order No. 19-007 (Feb. 6, 2019). Petitioner agreed at the final hearing that this case should proceed on race-based discrimination and retaliation, as pled in his Complaint.

him in a letter dated March 24, 2025. Therein, the ADA coordinator confirmed that DOAH would assist Petitioner with filing or processing documents, if requested, but that it could not provide legal counsel, offer legal assistance to Petitioner, or coordinate with Disability Rights Florida, an independent organization, to obtain legal assistance on his behalf.[2]

[2] The ADA Coordinator's letter, which addressed the same request Petitioner made in five employment discrimination cases that he had pending with DOAH, provided as follows:

> The Division of Administrative Hearings (DOAH) has reviewed your request for accommodations under the Americans with Disabilities Act (ADA), submitted on February 11,2025. After careful evaluation, we are unable to grant your request for case numbers: 25-384, 25-525, 25-745, 25-820 and 25-930.
>
> Your request included accommodations for
>
> - Legal Advocacy Assistance
> - Document Processing
> - Assistance Coordinating with Disability Rights Florida
>
> As to your request for legal advocacy assistance, DOAH cannot grant requests for legal counsel or advocacy as an ADA accommodation, as this would constitute legal representation, which falls outside the scope of ADA-mandated accommodations and does not comply with the DOAH's ADA Title II policy.
>
> As to your request for document processing, all documents, motions, or pleadings must be filed through the DOAH eAIJ online portal or via fax to (850) 921-6847. If you need assistance with electronic filing, you may contact the DOAH Clerk's Office at (850) 488-9675, and a judicial assistant will be available to assist you with filing electronic documents.
>
> As to your request for assistance coordinating with Disability Rights Florida, we are unable to serve as an intermediary in coordinating third-party advocacy services. Disability Rights Florida is an independent organization, and any arrangements for their assistance must be handled directly through their office.
>
> For your convenience, you may contact Disability Rights Florida by phone at (800) 342-0823 or visit their website at www.disabilityrishtsflorida.org.

The final hearing was initially scheduled for May 1, 2025. However, on April 9, 2025, after consultation with the parties, the undersigned rescheduled the final hearing for April 30, 2025.

On April 18, 2025, Respondent filed an Emergency Motion to Strike Petitioner's Confidential Exhibit (Proposed Exhibit C) and Motion for Sanctions. Respondent argued that Petitioner should not have filed a copy of a confidential settlement proposal, which it served on him in an attempt to resolve this case, as a proposed exhibit; Respondent also sought sanctions against Petitioner for emailing the same proposal to various employees and filing his proposed exhibits late. The undersigned issued an Order on April 21, 2025, directing Petitioner to show cause as to why he should not be sanctioned. Petitioner filed his response that same afternoon. In an Order dated April 22, 2025, the undersigned granted Respondent's request to strike Petitioner's Proposed Exhibit C because the settlement proposal was unquestionably inadmissible in this proceeding. However, the undersigned denied Respondent's request for sanctions finding no resulting prejudice in Petitioner's filing of his proposed exhibits two days beyond the deadline, but 12 days before the hearing; the undersigned also noted that he lacked a legal basis or authority under chapter 120 or the Uniform Rules to sanction Petitioner (who is acting pro se) for emailing copies of the unexecuted settlement proposal to Respondent's employees, which, even if improper, was more appropriately addressed in circuit court.

The final hearing occurred via Zoom Conference on April 30, 2025. Petitioner testified on his own behalf. Respondent presented the testimony of Wendy Gallerani, its manager of talent acquisition/operations.

Petitioner's Exhibits A, B, and D were admitted in evidence; Petitioner's proposed exhibit C was not admitted. Respondent's Exhibits A through D and F were admitted in evidence; Respondent withdrew its proposed exhibit E.

A one-volume Transcript of the final hearing was filed on May 27, 2025. Petitioner and Respondent timely filed their Proposed Recommended Orders ("PROs") on May 30, 2025, and June 6, 2025, respectively, which were duly considered in preparing this Recommended Order.

All references to the Florida Statutes are to the 2024 versions. In making the findings below, the undersigned only considered hearsay evidence that supplemented or explained other evidence or would be admissible over objection in civil actions. § 120.57(1)(c), Fla. Stat.

FINDINGS OF FACT

1. Respondent is a company that operates retail stores throughout the country. Respondent is an equal opportunity employer that maintains anti-discrimination, anti-harassment, and anti-retaliation policies.

2. Petitioner, an African American male, was interested in a part-time retail stocking position at one of Respondent's stores in Tampa, Florida. He has more than five years of experience working in retail and has a degree, though more specific details about his degree and experience are unknown.

3. Respondent utilizes a virtual online recruiting assistant, called Allison, to conduct initial screenings of potential candidates for hourly positions, including the retail stocking position for which Petitioner applied. Allison is programmed to ask a series of basic screening questions to determine whether potential candidates meet a position's minimum requirements.

4. Allison asks candidates for their contact information, including their name, phone number, and email address. Allison confirms that candidates meet the minimum age requirements for the position and are eligible to work

in the United States. Allison asks whether candidates are current or former employees, and the number of years of retail experience they have in a related role. Allison also confirms candidates' work availability, including weekdays, weekends, holidays, and the number of hours they are generally available to work.

5. In addition to the information above, Allison informs candidates about the applicable rate of pay for the position and asks whether it is acceptable to them. Indeed, Burlington sets a standard pay rate for new hires for hourly positions that is non-negotiable. If candidates indicate that the rate of pay is not acceptable, Allison is programmed to automatically reject them. That is because Respondent wants to avoid wasting resources interviewing candidates who are unwilling to work for the set rate of pay for that position.

6. Once the basic screening questions are completed, Allison is programmed to send a follow-up email or text message to the candidate. If candidates meet the basic qualifications, Allison sends a message inviting them to complete an application and schedule an interview. If candidates do not meet the basic qualifications, Allison sends a message informing them of that decision. Allison is programmed to only send Respondent's hiring managers information for eligible candidates.

7. Importantly, Allison is an online program that has no means of learning a candidate's race. It does not ask candidates to identify their race. It does not utilize a camera or any other device that enables it see a candidate's appearance. It is not programmed to conduct background checks or any other investigation into candidates based on the basic contact information they have provided. Respondent simply does not ever know a candidate's race at any point during this initial screening process.

8. On July 30, 2024, Petitioner completed the initial screening process on Respondent's website for a part-time retail stocking associate position. As programmed, Allison asked Petitioner the same set of questions it asks all candidates to determine his basic eligibility. Petitioner provided his name,

telephone number, and email address. He confirmed that he met the minimum age requirement of 18 years old and that he had the legal right to work in the United States; that he was neither a current nor a former employee; that he had weekday, weekend (both Saturday and Sunday), and holiday availability, and that he could work early mornings (between 6 a.m. and 10 a.m.), mornings (between 8:30 a.m. and 12:00 p.m.), afternoons (between 12:00 p.m. and 6:00 p.m.), nights (between 6:00 p.m. and close), and overnights (between 10:00 p.m. and 7 :00 a.m.); and that he had five-plus years of retail experience.

9. Allison also informed Petitioner that "[t]he rate for this role is 12 per hour," which was the non-negotiable starting rate for this part-time position. In response to Allison's question as to whether that rate was "acceptable to you," Respondent said, "No."

10. As a result of Petitioner's refusal to accept the stated pay rate, Allison determined—consistent with her programming and how she would handle that answer from any candidate—that Petitioner did not meet the basic qualifications for the position because the pay rate was non-negotiable. Thus, on July 31, 2024, Allison notified Petitioner that he did not meet the minimum qualifications for the position.

11. Petitioner claims that Respondent discriminated against him by refusing to hire him because he is African American. However, the weight of the credible evidence confirmed that Respondent never knew Petitioner's race at any time during the initial screening phase, which occurred entirely online. Allison never asked Petitioner to identify his race, nor did he volunteer it. Allison also does not have the capability to conduct any background research into a candidate outside the information provided during the screening process. Petitioner's race, thus, could have had no impact on Respondent's decision to reject his application during the initial screening phase. Instead, Respondent's decision was based solely on Petitioner's refusal to accept the rate of pay of $12.00 per hour, which

Respondent treated as non-negotiable for any and all candidates applying for this type of part-time hourly position.

12. Petitioner also claims that Respondent retaliated against him by refusing to negotiate a higher pay rate than $12.00 per hour. Petitioner believes that Respondent was legally obligated to negotiate his pay in good faith and that it should have done so because his experience warranted more than $12.00 per hour. However, Petitioner presented no evidence that he was engaged in a statutorily-protected activity, such as filing a complaint of discrimination, much less that Respondent's refusal to negotiate wages with him was retaliation for any such activity. To the contrary, Respondent set the pay rate for this part-time position at $12.00 per hour and would not negotiate that rate with any candidate, regardless of their experience, background, or race.

CONCLUSIONS OF LAW

13. DOAH has jurisdiction over the parties and the subject matter of this cause. §§ 120.569, 120.57(1), and 760.11(7), Fla. Stat.

14. The Florida Civil Rights Act ("FCRA") protects employees from race-based discrimination. Section 760.10 provides, in pertinent part, as follows:

> (1) It is an unlawful employment practice for an employer:
>
> (a) To discharge or to fail or refuse to hire any individual, or otherwise to discriminate against any individual with respect to compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, pregnancy, national origin, age, handicap, or marital status.
>
> * * *
>
> (7) It is an unlawful employment practice for an employer, an employment agency, a joint labor-management committee, or a labor organization to

> discriminate against any person because that person has opposed any practice which is an unlawful employment practice under this section, or because that person has made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing under this section.

15. Because the FCRA is patterned after Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e-17, "the Florida statute will take on the same constructions as placed on its federal prototype." *Brand v. Fla. Power Corp.*, 633 So. 2d 504, 509 (Fla. 1st DCA 1994); *Harper v. Blockbuster Entm't Corp.*, 139 F.3d 1385, 1387 (11th Cir. 1998). Therefore, claims of race-based discrimination under the FCRA are analyzed using the same framework and federal caselaw as Title VII claims. *See Holly v. Clairson Indus., L.L.C.*, 492 F.3d 1247, 1255 (11th Cir. 2007); *D'Angelo v. ConAgra Foods, Inc.*, 422 F.3d 1220, 1224 n.2 (11th Cir. 2005).

16. The burden of proof is on Petitioner as the complainant. *Dep't of Banking & Fin., Div. of Sec. & Investor Prot. v. Osborne Stern & Co.*, 670 So. 2d 932, 934 (Fla. 1996). Petitioner, as the complainant, has the burden to establish a prima facie case of discrimination by a preponderance of the evidence. *Valenzuela v. GlobeGround N. Am., LLC*, 18 So. 3d 17, 22 (Fla. 3d DCA 2009). A "preponderance of the evidence" means the "greater weight" of the evidence, or evidence that "more likely than not" tends to prove the fact at issue. *Gross v. Lyons*, 763 So. 2d 276, 289 n.1 (Fla. 2000).

17. Discrimination may be proven by direct, statistical, or circumstantial evidence. *Valenzuela*, 18 So. 3d at 22. Direct evidence is evidence that, if believed, would prove the existence of discriminatory intent behind the employment decision without any inference or presumption. *Denney v. City of Albany*, 247 F.3d 1172, 1182 (11th Cir. 2001); *see also Holifield v. Reno*, 115 F.3d 1555, 1561 (11th Cir. 1997). But, "'only the most blatant remarks, whose intent could be nothing other than to discriminate …' will constitute

direct evidence of discrimination." *Damon v. Fleming Supermarkets of Fla., Inc.*, 196 F.3d 1354, 1358-59 (11th Cir. 1999) (citations omitted).

18. Petitioner failed to present any direct or statistical evidence of discrimination. Thus, Petitioner must rely on circumstantial evidence to prove his claim.

19. It is settled that Florida courts follow the three-part framework set forth in *McDonnell Douglas Corp. v. Green*, 411 U.S. 792, 802-04 (1973), and its progeny, for establishing a claim of employment discrimination by circumstantial evidence. *Valenzuela*, 18 So. 3d at 21-22.

20. Under the *McDonnell Douglas* framework, Petitioner maintains the ultimate burden of proving discrimination by a preponderance of the evidence in the following manner. Petitioner must first establish a prima facie case of discrimination. *Valenzuela*, 18 So. 3d at 21-22. If successful, this raises a presumption of discrimination, which shifts the burden of proof to Respondent to offer a "legitimate, non-discriminatory reason" for the adverse employment action. *Id.* The reason given should be clear, reasonably specific, and worthy of credence. *Dep't of Corr. v. Chandler*, 582 So. 2d 1183, 1186 (Fla. 1st DCA 1991).

21. If Respondent meets its burden, the presumption of discrimination disappears and Petitioner must prove that Respondent's legitimate reasons for refusing to hire him were a pretext for discrimination. *Valenzuela*, 18 So. 3d at 21-22. In order to satisfy this final step of the process, Petitioner must show "directly that a discriminatory reason more likely than not motivated the decision, or indirectly by showing that the proffered reason for the … decision is not worthy of belief." *Chandler*, 582 So. 2d at 1186 (citing *Tex. Dep't of Cmty. Aff. v. Burdine*, 450 U.S. 248, 252-56 (1981)).

22. Petitioner alleged two distinct discrimination claims against Respondent: (1) failing to hire him for a job for which he allegedly was qualified because of his race; and (2) retaliating against him by refusing to negotiate his wages.

23. In order to establish a prima facie case of a failure to hire claim, Petitioner must prove the following: (1) that he belongs to a protected class; (2) he applied, and qualified, for a job for which Respondent was seeking applicants; (3) despite meeting qualifications, he was rejected; and (4) after the rejection, the position remained open and Respondent continued seeking applicants with similar qualifications. *Miami-Dade Cnty. v. Davis*, 307 So. 3d 883, 888 (Fla. 3d DCA 2020).

24. Based on the Findings of Fact above, Petitioner failed to establish a prima facie case of discrimination by a preponderance of the evidence. Although it is undisputed that Petitioner is African American, the weight of the credible evidence confirmed that no one at Respondent knew his race when it rejected him as a candidate. That is because Respondent's virtual screening process, which is programmed to ask a series of questions about qualifications, availability, and the acceptability of the rate of pay, never asks or otherwise captures a candidate's race. Petitioner simply never provided information about his race to Respondent during his initial screening process. Petitioner essentially speculates that Respondent must have learned his race by conducting a background check, even though there is no evidence to support that allegation. *See Young v. Gen. Food Corp.*, 840 F.2d 825, 830 (11th Cir. 1988) ("[C]onclusory allegations of discrimination, without more, are not sufficient to raise an inference of pretext or intentional discrimination." (quoting *Grigsby v. Reynolds Metals Co.*, 821 F.2d 590, 597 (11th Cir. 1987))).

25. Because Petitioner failed to prove that Respondent knew of his race when he was rejected as a candidate, he cannot establish a prima facie case of discrimination. Indeed, as the Ninth Circuit Court of Appeals stated long ago:

> The *McDonnell Douglas* test defines one method of proving a prima facie case of discrimination—proof from which a trier of fact can reasonably infer intentional discrimination. But the *McDonnell Douglas* elements would not rationally create this

> inference if, as here, a plaintiff offers proof that he is Black, but there is no showing by direct or indirect evidence that the decision-maker knew this fact.

Robinson v. Adams, 847 F.2d 1315, 1316 (9th Cir. 1987).

26. Petitioner also failed to establish by a preponderance of the evidence that he was qualified for the position. Although Petitioner's work history and education could have supported his qualifications to move beyond the initial screening stage, he refused to accept the stated rate of pay of $12.00 per hour. By doing so, Respondent's virtual screening application automatically deemed him unqualified because the rate of pay for this type of entry-level position, regardless of the candidate, was non-negotiable. Respondent was well within its right to reject any candidate as unqualified who refused to work for minimum wage for this entry-level, hourly position.

27. Even if Petitioner had established a prima facie case of discrimination, the weight of the credible evidence established that Respondent's reasons for not hiring Petitioner were legitimate and non-discriminatory. The only reason Petitioner did not move on to an interview is because he would not accept the stated rate of pay, which is exactly what the virtual screening application is programmed to do for all candidates who make that decision. And, given that Respondent has no knowledge of a candidate's race when this initial screening decision is made, Petitioner cannot prove that Respondent's decision to reject him was a pretext for discrimination.

28. In order to establish a prima facie case of retaliation, Petitioner must establish that: (1) he engaged in an activity protected under the FCRA; (2) he suffered a materially adverse employment action; and (3) there was a causal connection between the protected activity and the adverse action. *Kidd v. Mando Am. Corp.*, 731 F.3d 1196, 1211 (11th Cir. 2013) (citing *Chapter 7 Tr. v. Gate Gourmet, Inc.*, 683 F.3d 1249, 1258 (11th Cir. 2012)). "To establish a causal connection, a plaintiff must show that the relevant decisionmaker was 'aware of the protected conduct, and that the protected activity and the

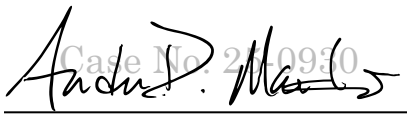
adverse actions were not wholly unrelated.'" *Kidd v. Mando Am. Corp.*, 731 F.3d 1196, 1211 (11th Cir. 2013) (quoting *Shannon v. Bellsouth Telecomm., Inc.*, 292 F.3d 712, 716 (11th Cir. 2002)). The failure to satisfy any of these elements is fatal to a complaint of retaliation. *Higdon v. Jackson*, 393 F.3d 1211, 1219 (11th Cir. 2004).

29. Based on the Findings of Fact above, Petitioner failed to establish by a preponderance of the evidence that he was engaged in a statutorily protected expression, such as opposing an unlawful employment practice, making a charge of discrimination, or participating in an investigation. § 760.10(7), Fla. Stat. Petitioner's actions in completing Respondent's screening process and informing Respondent that he would not accept the stated rate of pay for the position are clearly not statutorily protected activities. The evidence is also undisputed that Respondent did not retaliate against Petitioner; it refused to move him beyond the initial screening phase because he would not accept the stated rate of pay for the entry-level position, which was non-negotiable for any and all candidates. Petitioner has not cited, and the undersigned is unaware of any legal basis that would prohibit Respondent from rejecting all candidates for an entry-level position such as this when they are unwilling to work for minimum wage.

RECOMMENDATION

Based on the foregoing Findings of Fact and Conclusions of Law, it is RECOMMENDED that the Florida Commission on Human Relations issue a final order dismissing the Petition for Relief.

DONE AND ENTERED this 24th day of June, 2025, in Tallahassee, Leon County, Florida.



ANDREW D. MANKO
Administrative Law Judge
DOAH Tallahassee Office

Division of Administrative Hearings
2001 Drayton Drive
Tallahassee, Florida 32311
(850) 488-9675
www.doah.state.fl.us

Filed with the Clerk of the
Division of Administrative Hearings
this 24th day of June, 2025.

COPIES FURNISHED:

Casey C. Snipes, Clerk
(eServed)

Rayburn Rashard Scott
(eServed)

Luis A. Santos, Esquire
(eServed)

Sara K. Finnigan, Esquire
(eServed)

Juan Collins, Chief Legal Counsel
(eServed)

Radhika Puri, Attorney Supervisor
(eServed)

NOTICE OF RIGHT TO SUBMIT EXCEPTIONS

All parties have the right to submit written exceptions within 15 days from the date of this Recommended Order. Any exceptions to this Recommended Order should be filed with the agency that will issue the Final Order in this case.

EXHIBIT E

STATE OF FLORIDA
COMMISSION ON HUMAN RELATIONS

RAYBURN SCOTT,	FCHR No. 2025-101900
Petitioner,	EEOC No. 15D-2024-01390
v.	DOAH Case No. 25-0930
BURLINGTON STORES, INC.,	FCHR Order No. 25-093
Respondent.	

_____/

FINAL ORDER DISMISSING PETITION FOR RELIEF FROM A DISCRIMINATORY EMPLOYMENT PRACTICE

This matter is before the Commission for consideration of the Recommended Order issued in the above-styled cause by Administrative Law Judge Andrew D. Manko on June 24, 2025.

Preliminary Matters

On August 16, 2024, Rayburn Scott, Petitioner, filed an unlawful employment practice complaint pursuant to the Florida Civil Rights Act of 1992, Sections 760.01-760.11, Florida Statutes (2024), alleging that Burlington Stores, Inc., Respondent, committed an unlawful employment practice against Petitioner based on race and retaliation.

The Commission investigated the matter, and on February 11, 2025, the Commission's Executive Director issued a Determination of No Reasonable Cause.

On February 17, 2025, Petitioner filed a Petition for Relief from a Discriminatory Employment Practice, and the case was transmitted to the Division of Administrative Hearings (DOAH) for the conducting of an evidentiary hearing.

At DOAH, the case was assigned to Administrative Law Judge Manko.

On April 30, 2025, an evidentiary hearing was held via Zoom conferencing.

On June 24, 2025, the Administrative Law Judge issued the Recommended Order that recommended the Petition for Relief be dismissed.

Filed September 11, 2025 1:25 PM Division of Administrative Hearings

The Commission panel designated below has considered the record of this matter and determined the action to be taken on the Recommended Order.

Exceptions

Neither party timely filed exceptions.

Findings of Fact

We find the Administrative Law Judge's findings of fact are supported by competent and substantial evidence. Therefore, we adopt the Administrative Law Judge's findings of fact.

Conclusions of Law

We find the Administrative Law Judge's application of the law to the facts to result in a correct disposition of the matter. Therefore, we adopt the Administrative Law Judge's conclusions of law.

Dismissal

Based on the Administrative Law Judge's Recommended Order, the Petition for Relief and Employment Practice Discrimination Complaint are DISMISSED with prejudice.

Notice of Appeal Rights

The parties have the right to seek judicial review of this Final Order pursuant to Section 120.68, Florida Statutes, and Florida Rule of Appellate Procedure 9.110. Such proceedings are commenced by emailing clerk@fchr.myflorida.com, and a second copy with the filing fee prescribed by law, with the District Court of Appeal, First District, or with the District Court of Appeal in the Florida Appellate District where the party resides. The Notice of Appeal must be filed within 30 days of the date this Order is filed with the Clerk of the Commission.

DONE AND ORDERED this 11th day of September, 2025.

FOR THE FLORIDA COMMISSION ON HUMAN RELATIONS:

Commissioner Larry Hart, Panel Chairperson;
Commissioner Kenyetta Mullins Moyé; and
Commissioner Angela Primiano.

Filed this 11th day of September, 2025, in Tallahassee, Florida.

Casey Snipes
Clerk
Florida Commission on Human Relations
4075 Esplanade Way, Room 110
Tallahassee, FL 32399
850-488-7082

Copies furnished to:

Rayburn Scott
rayburnscott@outlook.com

Burlington Stores, Inc.
Ford & Harrison, LLP
c/o Luis A. Santos, Esquire
lsantos@fordharrison.com
c/o Sara K. Finnigan, Esquire
sfinnigan@fordharrison.com

Andrew D. Manko, Administrative Law Judge, Division of Administrative Hearings

John Scotese, Legal Advisor to the Florida Commission on Human Relations

I HEREBY CERTIFY that a copy of the foregoing has been mailed to the above listed addressees this 11th day of September, 2025.

By: Casey Snipes
Clerk of the Commission
Florida Commission on Human Relations

EXHIBIT F

From: Rayburn Scott <Rayburnscott@outlook.com>
Sent: Thursday, October 9, 2025 8:47 PM
To: Sara K. Finnigan <sfinnigan@fordharrison.com>; Luis A. Santos <LSantos@fordharrison.com>; Moye, Kenyetta <kenyetta.moye@fchr.myflorida.com>; andrew.manko@doah.state.fl.us; angela.primiano@fchr.myflorida.com; larry.hart@fchr.myflorida.com; Flowers, Amber <amber.flowers@fchr.myflorida.com>; Snipes, Casey <casey.snipes@fchr.myflorida.com>; Clerk <clerk@fchr.myflorida.com>; ada@flcourts.org; amber.rauscher@sci-us.com; EEOC - I I G <info@eeoc.gov>; public.affairs@fbi.gov; identity@fbi.gov; CISA <cisamedia@hq.dhs.gov>; Raquel Pancho <raquel.pancho@tampagov.net>; RachelS@disabilityrightsflorida.org; BRIAN WARD <brian.ward@eeoc.gov>; Js <cia_foia@ucia.gov>
Subject: Notice of Appeal FCHR Order Case No. 25-0930

Caution: Originated Outside FordHarrison.

Good morning,

In the case of Rayburn Scott vs. Burling Stores Inc., please review the attached documents.

Case No: Florida Commission on Human Relations Case No. 2025-101900
Equal Employment Opportunity Commission Case No. 15D-2024-01390
Division of Administrative Hearings Case No. 25-0930
Florida Commission on Human Relations Order No. 25-093

This email also contains the following:

1. Notice of Appeal
2. DOAH Hearing Transcript,
3. Recommended order by Judge Andrew D. Manko,
4. Scotts recommended order/ Settlement agreement
5. FCHR Questionnaire
6. Burlington Scott Settlement offer presented by Sarah Finnigan inc. W9 form and vendor/supplier agreement
7. Scott vs. Burlington Exhibits (Petitioner)
8. Scott vs. Burlington Exhibits (Respondents)

Sincerely,
Rayburn R. Scott

Sent from Outlook

EXHIBIT G

Filing # 237073968 E-Filed 12/04/2025 09:41:41 PM

DISTRICT COURT OF APPEAL, FIRST DISTRICT
2000 Drayton Drive,
Tallahassee, Florida 32399-0950
Telephone No. (850) 488-6151

Rayburn Scott,
Appellant(s)

Case 1D2025-3158
L.T. No.: 2025-101900 / 25-093

v.

Burlington Stores Inc.
Appellee(s).

AMENDED NOTICE OF APPEAL

NOTICE IS GIVEN that Rayburn Scott, Appellant, appeals to the First District Court of Appeal the Order of this Court rendered to the Florida Commission on Human Relations Clerk, Casey Snipes on the 10th day of October 2025. This order was filed with The First District Cort of Appeal by the clerk of the lower tribunal on the 2nd day of December 2025. The nature of the order is for **Reconsideration of the Recommended Order** issued by the **Division of Administrative Hearing's Administrative Law Andrew D. Manko** for the hearing that was convened on the 24th day of June 2025.

Respectfully submitted on the 5th Day of December 2025 by,

Rayburn R. Scott

Rayburn R. Scott
4701 Dragon Tail Ct.
Valrico, FL 33594

Case 1D2025-3158

CERTIFICATE OF SERVICE

I hereby certify that a copy hereof has been furnished on the 5th day of December 2025 to:

Burlington Stores Inc.
Appellee's Representative: Sarah Finnigan
7650 West Courtney Campbell Causeway, Suite 800,
Tampa, FL 33607
Respondent's Representative
Ford & Harrison, LLP 100 Rialto Pl, Melbourne, FL 32901
Luis A. Santos, Esquire lsantos@fordharrison.com
Sara K. Finnigan, Esquire sfinnigan@fordharrison.com 100 Rialto Pl, Melbourne, FL 32901

Method of Delivery: Mailed, Electronic Filing and E-Mailed By
Rayburn Scott on the 5th day of December 2025

Rayburn R. Scott

Rayburn R. Scott

Filing # 237370581 E-Filed 12/09/2025 06:54:59 PM

DISTRICT COURT OF APPEAL, FIRST DISTRICT
2000 Drayton Drive,
Tallahassee, Florida 32399-0950
Telephone No. (850) 488-6151

Rayburn Scott,
Appellant(s)

Case 1D2025-3158
L.T. No.: 2025-101900 / 25-093

v.

Burlington Stores Inc.
Appellee(s).

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Respectfully submitted on the 5th Day of December 2025 by,

Rayburn R. Scott

Rayburn R. Scott
4701 Dragon Tail Ct.
Valrico, FL 33594

Case 1D2025-3158

CERTIFICATE OF SERVICE

I hereby certify that a copy hereof has been furnished on the 5th day of December 2025 to:

Burlington Stores Inc.
Appellee's Representative: Sarah Finnigan
300 S. Orange Ave. Suite1300
Orlando, Fl 32801
T (407) 418-2325 | F (407) 418-2327
Respondent's Representative
Ford & Harrison, LLP
Luis A. Santos, Esquire lsantos@fordharrison.com
Sara K. Finnigan, Esquire sfinnigan@fordharrison.com
Method of Delivery: Mailed, Electronic Filing and E-Mailed By Rayburn Scott on the 5th day of December 2025

Rayburn R. Scott

Rayburn R. Scott